

echoing the language of § 3294. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864,872 [conclusory language describing defendant's conduct as intentional, willful and fraudulent is insufficient statement of oppression. fraud or malice within the meaning of section 3294]; *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-42 [Insufficient facts to support claim for punitive damages where the sole basis was conclusory allegations characterizing defendants' conduct as intentional, willful, and fraudulent].)

Attorney's Fees

California generally follows what is commonly referred to as the "American Rule," which provides that each party to a lawsuit must ordinarily pay his or her own attorney fees. (See, e.g., *Trope v. Katz* (1995) 11 Cal.4th 274, 278.) The American Rule is codified in Code of Civil Procedure section 1021, which states in relevant part: "Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties" (*Tract 19051 Homeowners Assn. v. Kemp* (2015) 60 Cal.4th 1135, 1142.)

"Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived and pass it without consideration." (*People v. Stanley* (1995) 10 Cal.4th 764, 793.) Defendants argue that there is no such agreement that requests attorney's fees. (MTS at p. 7: 7-8.) Plaintiff does not argue this point in her opposition. (See *Oppo* generally.) The Court will treat Plaintiff's failure to argue this point as a Plaintiff conceding this point.

Conclusion

For the reasons analyzed above, **Defendants' Motion to Strike is granted with leave to amend.**

11. 9:00 AM CASE NUMBER: C25-00225
CASE NAME: VALENTINA HOEVEN VS. CONTRA COSTA COUNTY
HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

Before the Court is Defendant Contra Costa County ("Defendant" or "County")'s demurrer to Plaintiff Valentina Hoeven ("Plaintiff" or "Hoeven")'s First Amended Complaint for (1) Retaliation in Violation of FEHA (Government Code § 12940, et seq.); (2) Retaliation in Violation of Labor Code § 1102.5; (3) Gender/Sex Discrimination in Violation of FEHA (Government Code § 12940, et seq.); (4) National Origin Discrimination in Violation of FEHA (Cal. Gov. Code § 12940, et seq.); (5) Disability Discrimination in Violation of FEHA (Government Code § 12940, et seq.); (6) Failure to Engage in Good Faith Interactive Process in Violation of FEHA (Government Code § 12940, et seq.); (7) Failure to Provide Reasonable Accommodations in Violation of FEHA (Government Code § 12940, et seq.); (8) Pregnancy Discrimination in Violation of PDL (Government Code § 12945, et seq.); (9) Failure to Reasonably Accommodate Pregnancy-Related Conditions in Violation of PDL (Government Code § 12945, et seq.); and (10) Failure to Prevent Discrimination and Harassment in Violation of FEHA (Government Code § 12940, et seq.)

Defendant demurs to Plaintiffs' FAC on the grounds that she has not stated any claims for relief.

For the following reasons, the Demurrer is **sustained-in-part** and **overruled-in-part** as described further, below.

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

As a threshold issue, Defendant argues that the First Amended Complaint violates the sham pleading doctrine.

“‘Generally, after an amended pleading has been filed, courts will disregard the original pleading. [Citation.] [¶] However, an exception to this rule is found ... where an amended complaint attempts to avoid defects set forth in a prior complaint by ignoring them. The court may examine the prior complaint to ascertain whether the amended complaint is merely a sham.’ [Citation.] ... Moreover, any inconsistencies with prior pleadings must be explained; if the pleader fails to do so, the court may disregard the inconsistent allegations. [Citation.] Accordingly, a court is ‘not bound to accept as true allegations contrary to factual allegations in former pleading in the same case.’ [Citation.]” (*Vallejo Development Co. v. Beck Development Co.* (1994) 24 Cal.App.4th 929, 946; see *State of California ex rel. Metz v. CCC Information Services, Inc.* (2007) 149 Cal.App.4th 402, 412 [“‘[u]nder the sham pleading doctrine, plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers or motions for summary judgment’”].)

“The sham pleading doctrine is not “‘intended to prevent honest complainants from correcting erroneous allegations ... or to prevent correction of ambiguous facts.’” [Citation.] Instead, it is intended to enable courts “‘to prevent an abuse of process.’” [Citation.]” (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 426; see *Amid v. Hawthorne Community Medical Group, Inc.* (1989) 212 Cal.App.3d 1383, 1391 [“‘A court has inherent power by summary means to prevent an abuse of its process and peremptorily to dispose of sham causes of action’”].) Plaintiffs therefore may avoid the effect of the sham pleading doctrine by alleging an explanation for the conflicts between the pleadings. (*CCC Information Services*, supra, 149 Cal.App.4th at p. 412; *Vallejo Development*, supra, 24 Cal.App.4th at p. 946.)

In response to Defendant’s argument, Plaintiff argues that she has not made inconsistent pleadings, but instead “eliminated five causes of action to streamline her complaint and eliminated facts that were not material to the remaining causes of action.” (Opp. at 8:5-7.)

The Court is inclined to agree with Plaintiff; in the absence of direct contradictions, even the deletion of “harmful allegations” as Defendant characterizes the omitted language, does not rise to the level of a sham. The Court cannot conclude that the allegations of the original complaint are in direct

contradiction with the amended complaint.

(1) Retaliation in Violation of FEHA (Government Code § 12940, et seq.);

The first cause of action alleges retaliation in violation of the FEHA under Government Code section 12940(h), which prohibits an employer from discharging or otherwise discriminating against an employee because the employee has engaged in protected activity. To state a claim for retaliation, a plaintiff must plead that she engaged in protected activity, that she suffered an adverse employment action, and that there is a causal connection between the protected activity and the adverse action. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.)

“An ‘adverse employment action,’ which is a critical component of a retaliation claim, requires a substantial adverse change in the terms and conditions of the plaintiff’s employment.” (*Holmes v. Petrovich Development Co., LLC* (2011) 191 Cal.App.4th 1047, 1063, quotation marks omitted.)

“Appropriately viewed, this provision protects an employee against unlawful discrimination with respect not only to so-called “ultimate employment actions” such as termination or demotion, but also the entire spectrum of employment actions that are reasonably likely to adversely and materially affect an employee’s job performance or opportunity for advancement in his or her career.” (*Yanowitz*, supra, 36 Cal.4th at pp. 1053-1054.) This standard is construed liberally — “although an adverse employment action must materially affect the terms, conditions, or privileges of employment to be actionable, the determination of whether a particular action or course of conduct rises to the level of actionable conduct should take into account the unique circumstances of the affected employee as well as the workplace context of the claim.” (*Id.* at p. 1052.) “A schedule change in an employee’s work schedule may make little difference to many workers, but may matter enormously to a young mother with school-age children.” (*Burlington Northern and Santa Fe Ry. Co. v. White* (2006) 548 U.S. 53, 69.)

Defendant demurs to this cause of action on the grounds that “Plaintiff does not allege protected activity under FEHA.” (Demurrer at 6:18.) Defendant also argues that the FAC fails to allege a cognizable adverse employment action. (*Id.* at 6:28.)

In opposition, Plaintiff argues that requesting pregnancy accommodations is a protected activity (Opp. at 9:19-25 (citing FAC at ¶ 33 and *Yanowitz*, supra, at p. 1043) and that she has alleged several adverse employment actions including denial of light duty assignment and work-from-home accommodations.

Plaintiff has adequately alleged protected activity: she alleges that she told Lieutenant Sliger about her pregnancy and requested light duty based on her doctor’s recommendation. (FAC at ¶¶ 32, 33.) This is sufficient to allege protected activity at the pleading stage. While less clear, Plaintiff does appear to have adequately described retaliation for pleading purposes. She alleges that she requested to work from home to comply with a doctor’s recommendation that she not drive but that the County’s ADA Coordinator told her, “that the county had very strict guidelines about working from home, and that it would not be possible.” (FAC at ¶ 41.) Plaintiff alleges that she was assigned back to Court Security Unit which “was a full duty assignment without the possibility of any modifications.” (*Id.* at ¶ 42.) Ultimately, Plaintiff alleges that “Defendant made unreasonable return-to-work demands, failed to reinstate her to a comparable position, and created a hostile work environment, culminating in her constructive discharge on November 30, 2023.” (FAC at ¶ 47.)

At this stage, the Court concludes Plaintiff has adequately alleged her cause of action for Retaliation in

violation of FEHA. The Demurrer to this cause of action is **overruled**.

(2) Retaliation in Violation of Labor Code § 1102.5:

“To establish a prima facie case of retaliation, a plaintiff must show that she engaged in a protected activity, that she was thereafter subjected to adverse employment action by her employer, and there was a causal link between the two.” (*Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 614.)

Defendant demurs to this cause of action on similar grounds as above; Defendant contends that “Plaintiff has not alleged engagement in a protected activity under § 1102.5 ... [n]or has Plaintiff alleged that she suffered a qualifying adverse employment action” or “a causal relationship between any protected activity and any adverse employment action.” (Demurrer at 8:23-27.)

In opposition, Plaintiff argues that the FAC alleges she made a formal written request referencing the Pregnancy Workers Fairness Act (FAC at ¶ 38) and that she also raised her concerns to HR and the ADA coordinator (*id.* at ¶ 41), but she was removed from her position and placed on involuntary FMLA leave (*id.* at ¶¶ 42, 45.) Ultimately, the FAC alleges that “Defendant made unreasonable return-to-work demands, failed to reinstate her to a comparable position, and created a hostile work environment, culminating in her constructive discharge on November 30, 2023.” (FAC at ¶ 47.)

At this stage, the Court concludes Plaintiff has adequately alleged her cause of action for Retaliation in Violation of Labor Code § 1102.5. The Demurrer to this cause of action is **overruled**.

(3) Gender/Sex Discrimination in Violation of FEHA (Government Code § 12940, et seq.);
and

(4) National Origin Discrimination in Violation of FEHA (Cal. Gov. Code § 12940, et seq.);

Defendant demurs to Plaintiff’s causes of action for gender/sex as well as national origin discrimination under FEHA on the grounds that Plaintiff fails to allege she competently performed in her position, does not allege a qualifying adverse employment action nor a causal connection between such action and any discrimination based on Plaintiff’s status as a woman or a Russian national.

Government Code § 12940(a) prohibits an employer from discriminating based on sex, disability, and other protected characteristics “in compensation or in terms, conditions, or privileges of employment.” (Govt. Code § 12940(a); *Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 705.) Official actions by the employer of disparate treatment, or demoting or terminating an employee based on protected characteristics such as sex or race, constitute unlawful discrimination under FEHA. (*Roby, supra*, 47 Cal.4th 686 at 705, 708.)

Under the FEHA, a prima facie case of discrimination consists of the following elements: (1) the plaintiff is a member of a protected class, (2) the plaintiff was qualified for the position he or she sought or was performing competently in the position he or she held, (3) the plaintiff suffered an adverse employment action, and (4) some other circumstance suggesting discriminatory motive. (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 355.)

Defendant contends that Plaintiff fails to allege that she was performing competently in her position. Defendant argues that Plaintiff's own allegations establish that she was not competently performing her job and that "Plaintiff could not perform the basic functions of a sworn peace officer[.]" (Demurrer at 9:13.) While Plaintiff does allege several adverse actions taken against her including a reprimand for failing to respond to a scene, she attributes those to disparate treatment. (See FAC at ¶¶ 4, 30.)

That said, Plaintiff does not allege that prior to the alleged disparate treatment she was performing competently in her position. She alleges a single promotion from her hire date (FAC at ¶¶ 11, 12) but that is inadequate to establish the second element of a prima facie case of discrimination under FEHA.

Defendant's Demurrer to Plaintiff's third and fourth causes of action is **sustained**, with leave to amend.

(5) Disability Discrimination in Violation of FEHA (Government Code § 12940, et seq.);

Defendant demurs to Plaintiff's cause of action for disability discrimination on the grounds that Plaintiff fails to allege she was qualified to perform the essential functions of her position with or without accommodation.

In a claim for disability discrimination, the plaintiff must allege that she can perform the essential functions of her job with or without a reasonable accommodation. (See *Brundage v. Hahn* (1997) 57 Cal. App.4th 228, 236; *Deschene v. Pinole Point Steel* (1999) 76 Cal.App.4th 33, 44; and *Jensen v. Wells Fargo Bank* (2000) 85 Cal.App.4th 245, 254.)

Here, the First Amended Complaint does not allege that Plaintiff was qualified to perform the essential duties of her position with or without reasonable accommodation, as required to allege a prima facie cause of action for disability discrimination. Defendant's Demurrer to Plaintiff's fifth cause of action is **sustained**, with leave to amend.

(6) Failure to Engage in Good Faith Interactive Process in Violation of FEHA (Government Code § 12940, et seq.);

"The FEHA makes it 'an unlawful employment practice ... [¶] ... [¶] [f]or an employer or other entity covered by this part to fail to engage in a timely, good faith, interactive process with the employee or applicant to determine effective reasonable accommodations, if any, in response to a request for reasonable accommodation by an employee or applicant with a known physical or mental disability or known medical condition.'" (*Swanson v. Morongo Unified School Dist.* (2014) 232 Cal.App.4th 954, 971.) "Under FEHA, it is an unlawful practice for an employer to fail to engage in a good faith interactive process with the employee to determine an effective reasonable accommodation if an employee with a known physical disability requests one." (*Brown v. Los Angeles Unified School Dist.* (2021) 60 Cal.App.5th 1092, 1109.)

Defendant demurs to this cause of action on the grounds that the FAC alleges there was an interactive process, and that she met with a Director of Personnel and Payroll and an ADA Coordinator as part of her discussions with the County about her alleged disability. (FAC ¶ 41.) Defendant further argues, relying on *Scotch v. Art Institute of Cal.*, that "a plaintiff may not double dip on her causes of action."

(Demurrer at 11:22-24 [citing *Scotch v. Art Institute of Cal.* (2009) 173 Cal.App.4th 986, 1003].)

Under *Scotch*, to state a claim for failure to engage in the interactive process, an employee “must identify a reasonable accommodation that was available at the time the interactive process should have occurred.” (*Scotch, supra*, 173 Cal.App.4th at pp. 994-995.)

“Although the interactive process is an informal process designed to identify a reasonable accommodation that will enable the employee to perform his or her job effectively, an employer’s failure to properly engage in the process is separate from the failure to reasonably accommodate an employee’s disability and gives rise to an independent cause of action.” (*Swanson v. Morongo Unified School Dist.* (2014) 232 Cal. App. 4th 954, 971, as modified on denial of reh’g (Dec. 23, 2014) [internal citations omitted].)

Here, Plaintiff alleges that she contacted her supervisors (including Lieutenant Sliger and Sergeant Chestnut) and requested accommodations including light duty and working from home based on her doctor’s recommendation. (FAC at ¶¶ 33-36.) Specifically with respect to her accommodation that she work from home based on her worsening pregnancy illnesses, she alleges that she wrote an email referencing the Pregnancy Workers Fairness Act (“PWFA”) but did not receive a response. (*Id.* at ¶ 38.) She alleges that she was reassigned back to Court Security Unit, “a fully duty assignment without the possibility of any modifications.” (*Id.* at ¶ 42.) She further alleges that she was placed on involuntary FMLA leave (*id.* at ¶ 45), excluded from vacation sign up for the following year (*id.* at ¶ 46), and constructively discharged on November 30, 2023. (*Id.* at ¶ 47.)

At this stage, the Court concludes that Plaintiff has adequately alleged failure to engage in good faith interactive process. The Demurrer to this cause of action is **overruled**.

- (7) Failure to Provide Reasonable Accommodations in Violation of FEHA (Government Code § 12940, et seq.); and
- (9) Failure to Reasonably Accommodate Pregnancy-Related Conditions in Violation of PDL (Government Code § 12945, et seq.); and

Defendant demurs to Plaintiff’s seventh cause of action for failure to provide reasonable accommodations in violation of FEHA and ninth cause of action for failure to reasonably accommodate pregnancy-related conditions in violation of Pregnancy Disability Leave on the same grounds: that Plaintiff fails to allege she was qualified to perform the essential functions of her position with accommodation, which is a required element of each cause of action.

“The elements of a failure to accommodate claim are (1) the plaintiff has a disability under the FEHA, (2) the plaintiff is qualified to perform the essential functions of the position, and (3) the employer failed to reasonably accommodate the plaintiff’s disability.” (*Scotch, supra*, 173 Cal. App. 4th at pp. 1009-1010.)

Pursuant to Government Code section 12940(m), it is unlawful for an employer “to fail to make reasonable accommodation for the known physical or mental disability of an applicant or employee.” (Gov. Code, § 12940(m).)

“Under section 12940, a woman disabled by pregnancy is entitled to the protections afforded any

other disabled employee—a reasonable accommodation that does not impose an undue hardship on her employer.” (*Sanchez v. Swissport, Inc.* (2013) 213 Cal. App. 4th 1331, 1339.)

For purposes of an alleged failure reasonably to accommodate a disability, a “plaintiff proves he or she is a qualified individual by establishing that he or she can perform the essential functions of the position to which reassignment is sought, rather than the essential functions of the existing position.” (*Cuiellette v. City of Los Angeles* (2011) 194 Cal. App. 4th 757, 767.) “If the employee fails to request an accommodation, the employer cannot be held liable for failing to provide one.” (*Spitzer v. The Good Guys, Inc.* (2000) 80 Cal. App. 4th 1376, 1384.)

As the Court noted with respect to Plaintiff’s disability discrimination claim, the First Amended Complaint does not allege that Plaintiff was qualified to perform the essential duties of her position. Defendant’s Demurrer to Plaintiff’s seventh and ninth causes of action is **sustained**, with leave to amend.

(8) Pregnancy Discrimination in Violation of PDL (Government Code § 12945, et seq.);

Defendant demurs to this cause of action on the grounds that Plaintiff has not alleged facts showing she was discriminated against based on her pregnancy, “i.e., that she experienced a qualifying adverse employment action due to anti-pregnancy animus.” (Demurrer at 12:28-13:1.)

“Pregnancy discrimination is a form of sex discrimination.” (*Sanchez v. Swissport, Inc.* (2013) 213 Cal. App. 4th 1331, 1340 [citing Govt. Code, § 12926(q)] [defining sex discrimination to encompass pregnancy discrimination]. “Being unable to work during pregnancy is a disability for the purposes of section 12940.” (*Id.* [citing Govt. Code, § 12926(1)] [defining “[p]hysical disability” as including any physiological condition that impairs a major life activity, such as working].)

Plaintiff alleges several adverse actions in support of her claim for pregnancy discrimination: that Defendant denied her requested accommodations, removed her from a light-duty position, placed her on involuntary FMLA leave, and constructively discharged her. (FAC ¶¶ 37, 41-47.) The FAC also suggests temporal proximity between Plaintiff’s pregnancy accommodation requests and the adverse actions, which can support an inference of discriminatory animus.

At this stage, the Court concludes Plaintiff has adequately alleged her cause of action for pregnancy discrimination. Defendant’s Demurrer to Plaintiff’s eighth cause of action is **overruled**.

(10) Failure to Prevent Discrimination and Harassment in Violation of FEHA (Government Code § 12940, et seq.)

Defendant demurs to Plaintiff’s tenth cause of action for failure to prevent discrimination on the grounds that Plaintiff fails to allege objectively abusive harassment and the allegations of the FAC are conclusory.

An employer is obligated “to take all reasonable steps necessary to prevent discrimination and harassment from occurring.” (Gov. Code, § 12940, subd. (k).) “When a plaintiff seeks to recover damages based on a claim of failure to prevent discrimination or harassment she must show three essential elements: 1) plaintiff was subjected to discrimination, harassment or retaliation; 2) defendant failed to take all reasonable steps to prevent discrimination, harassment or retaliation; and 3) this failure caused plaintiff to suffer injury, damage, loss or harm.” (*Lelaind v. City and County of San*

Francisco (N.D. Cal. 2008) 576 F.Supp.2d 1079, 1103, quoted with omissions in *Caldera v. Department of Corrections and Rehabilitation* (2018) 25 Cal.App.5th 31, 43-44.)

Because Plaintiff has failed to allege facts to state a claim for discrimination or harassment, Defendant's Demurrer is **sustained**, with leave to amend.

12. 9:00 AM CASE NUMBER: C25-01696
CASE NAME: PAUL RAPIER VS. CATHERINE FOSTER
HEARING ON DEMURRER TO: PLAINTIFF'S COMPLAINT
FILED BY: FOSTER, CATHERINE
TENTATIVE RULING:

Defendant's demurrer to the second cause of action for hostile work environment harassment is **overruled** and its demurrer to the eighth cause of action for intentional infliction of emotional distress is **sustained with leave to amend**. Defendant shall prepare the order and serve notice of entry of order. Plaintiff shall have 30 days from service of notice of entry of order in which to file and serve an amended complaint.

Background

Plaintiff Paul Rapier alleges that he is a 50-year-old disabled African American male who was employed by Defendant Contra Costa School for the Performing Arts (CCSPA) for approximately seven months, beginning on or around October 10, 2023, as a Lead Custodian. According to the complaint, Rapier performed his job in an exemplary manner at all relevant times and received no negative performance reviews or disciplinary actions. (Complaint, ¶¶ 11-12.)

Rapier alleges that throughout his tenure, he was one of, if not the only, African American employee in the workplace and that he was treated less favorably than his non-African American counterparts. Specifically, he alleges that he was deprived of the same rights, benefits, and privileges as non-African American employees and that he was shunned, ostracized, and excluded by his non-African American coworkers. (Complaint, ¶ 13(a).)

Rapier further alleges that his minor son, who was a student at the same school where Rapier worked, was subjected to similar treatment. According to the complaint, Rapier's son, who was one of few African American students at the school, was frequently singled out, targeted, and falsely accused of engaging in misconduct. In or around November 2023, Rapier's son was allegedly falsely accused of hitting two female Caucasian students. (Complaint, ¶13.b.) Rapier alleges that his son vehemently denied the accusations and explained that he was not involved, but that his explanations were disregarded. Rapier characterizes this incident as reflective of a culture of animus toward African Americans. (*Ibid.*)

Upon learning of the accusations, Rapier alleges that he attempted to defend his son to an administration he contends was known to target people of color. Despite Rapier's status as a dedicated employee, Executive Director Catherine Foster (Foster), a Caucasian woman, allegedly disregarded Rapier's explanations and moved his son to a different class. (Complaint, ¶ 13.c.)

Several days later, Rapier alleges that he was notified that the parents of the two female students had filed a restraining order against his son. Rapier contested the matter in court in or around December 2023, and the restraining order was ultimately dismissed. Rapier alleges that despite the dismissal and the determination that his son had not engaged in the alleged conduct, Defendants continued to